

Criminal Law, Investigation and Procedure Victoria
Investigation
Questioning
Overview
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Overview

[Q.20] Introduction

This chapter addresses issues surrounding the asking of questions by people in authority, particularly police. Any citizen may make inquiries of another, although there is no compulsion to answer. Police, and others in authority, as part of their role in investigating criminal conduct, often engage in questioning individuals, be they a victim, potential witness or suspect. In short, the job of policing often entails asking questions. Interrogation may lead to admissions or confessions, which may subsequently be lead in a trial, or summary hearing. This overview touches upon those aspects of questioning to be later discussed in this chapter.

The pre-trial right to silence

One of the objects of police inquiries is to gather evidence which can ultimately be adduced at a hearing or trial. The common law right to silence and the privilege against self-incrimination protect a suspect from being forced to answer questions.¹ Any compulsion to answer questions asked by people in authority arises only by virtue of legislation. An unfavourable inference must not be drawn from the failure or refusal to answer questions.² However, if the failure or refusal is a fact in issue in the trial, such evidence may be used to draw an inference of consciousness of guilt or an inference adverse to the defendant's credibility.³

See further at [\[Q.1000\]](#) ff. See also [\[EA.89.20\]](#).

The admissibility of admissions and confessions

Statutory provisions seek to achieve a balance between the need for effective investigation of crime and fairness to the suspect. Given that the police have powers vested in them to investigate crime,

the law also imposes protections upon the citizen against abuses of those powers. It achieves this by a combination of legislative protections⁴ which include rules as to the admissibility of admissions and judicial discretions to exclude evidence. [Chapter 3 of the *Evidence Act 2008*](#) concerns the admissibility of evidence. Part 3.4 of Ch 4 (ss 81–90) is about the extent to which admissions are admissible. The Dictionary of the *Evidence Act 2008* defines an “admission”. Section 81 states the rule that admissions are admissible as exceptions to the rules against the hearsay and opinion rules; s 82 excludes evidence of admissions that are not first-hand; s 83 excludes admissions as against third parties; s 84 excludes admissions influenced by violent, oppressive, inhuman or degrading conduct, or threats of such conduct; s 85 provides for certain admissions to be excluded as unreliable; s 86 excludes records of oral questioning; s 90 provides for a discretion to exclude admissions on the basis of unfairness, and s 138 provides for the exclusion of improperly or illegally obtained evidence. The failure to caution a suspect is “deemed impropriety” pursuant to s 139.

See further at [\[Q.2000\]](#) ff. See also [\[EA.PT3.4.40\]](#), [\[EA.83.20\]](#), [\[EA.84.20\]](#), [\[EA.84.40\]](#), [\[EA.85.20\]](#), [\[EA.86.20\]](#), [\[EA.90.20\]](#), [\[EA.138.20\]](#), [\[EA.138.40\]](#), [\[EA.138.60\]](#), [\[EA.138.80\]](#), [\[EA.138.100\]](#).

Audio or audiovisual recording of confessions and admissions

Evidence of an admission or confession may be excluded if it fails to meet the statutory requirements including, in the case of indictable matters, that they be audio or audiovisually recorded.⁵ This statutory protection to the accused is designed to eliminate the “police verbal”: the partially or wholly concocted confession.

See further at [\[Q.2040\]](#) ff.

Admissibility of questions and answers in records of interview

Specific questions and answers in police interviews may be inadmissible for a number of reasons. They may be irrelevant, or relate to matters about which the suspect is not required to give answers. They may be questions of an expert nature, outside the knowledge of the suspect. Other questions and answers may simply be such that their prejudicial effect outweighs their probative value.

See further at [\[Q.2120\]](#), [\[EA.137.20\]](#), [\[EA.137.40\]](#), [\[EA.137.60\]](#).

Denials in a record of interview and calling the accused at trial

A record of interview which is exculpatory may be admitted in fairness to a defendant

See further at [\[Q.2140\]](#).

The record of interview of a co-defendant

At common law, the record of interview of one defendant was not admissible in the trial of any co-defendant. Pursuant to [s 83 of the Evidence Act 2008](#), the whole of a record of interview by Defendant D1 is admissible in the trial of Defendant D2, if Defendant D1 consents. A forensic decision as to whether counsel for D2 consents to the use of Defendant D1's record of interview in the trial of D2 will need to be made in any joint trial.

See further at [\[Q.2160\]](#). See also [\[EA.83.20\]](#).

Judicial discretions to exclude confessions and admissions

The discretions to exclude an admission or confession are prescribed in the [s 90](#) (fairness) and [s 138](#) (improperly or illegally obtained evidence) of the [Evidence Act 2008](#). [Section 138](#) also modifies the common law “public policy” (*Bunning v Cross*⁶) discretion.

In summary matters, questioning is not required to be tape-recorded, although any document containing an admission must be acknowledged by the suspect in order to be admissible.⁷

See further at [\[Q.2180\]](#) ff. See also [\[EA.90.20\]](#), [\[EA.138.20\]](#), [\[EA.138.40\]](#), [\[EA.138.60\]](#), [\[EA.138.80\]](#), [\[EA.138.100\]](#).

Questioning of persons in custody

A suspect who is in custody may be questioned in accordance with the law prescribed in [s 464A of the Crimes Act 1958](#). Before any questioning commences, a caution informing the person that he or she “does not have to say or do anything but that anything the person does say or do may be given in evidence” must be given to the suspect. That requirement is prescribed by [s 464A\(3\)](#). The caution must be given in, or translated into, a language the person understands.⁸

An investigating official may request the person's name and address before any “questioning” commences and before informing a person in custody of their right to silence.⁹

A failure to caution is deemed to be “improper”, and may result in the exclusion of an admission or confession pursuant to [ss 138 and 139 of the Evidence Act 2008](#). A suspect must also be informed of their right to communicate with, or attempt to communicate with a friend or relative, and with a legal practitioner pursuant to [s 464C of the Crimes Act 1958](#). Admissions may be implied from conduct, such as flight. Admissions inferred from a failure or refusal to answer questions may be admissible as consciousness of guilt or as relevant to a defendant's credit, pursuant to [s 89\(3\) and \(4\) of the Evidence Act 2008](#).

Victoria Police Manual – Procedures and Guidelines,¹⁰ some of which have their origins in the *Judges' Rules*, seek to regulate the procedures by which police undertake questioning of suspects. However, they do not have the force of law. Non-compliance may attract the exercise of a discretionary exclusion pursuant to [s 138 of the Evidence Act 2008](#).

See further at [\[Q.3000\]](#) ff.

Characteristics of suspects

Apart from according rights to suspects generally, the law on police questioning is also designed to avoid unfairness to specific categories of suspects, such as young persons, those suffering from a mental or an intellectual disability, or from intoxication or drugs, foreign nationals, Aboriginals, prisoners held on other matters and non-English speaking persons. In the case of the last mentioned category, there is a statutory right to an interpreter while a foreign national has the statutory right to communicate with the consular official from the country of which he or she is a citizen.

Admissions that are the product of an intoxicated, drug-affected or medically unfit suspect may be excluded if held to be unreliable, pursuant to [s 85 of the Evidence Act 2008](#). A confession may also be excluded on the basis of illegality, impropriety¹¹ or unfairness.¹²

See further at [\[Q.4000\]](#) ff. See also [\[EA.90.20\]](#), [\[EA.138.20\]](#), [\[EA.138.40\]](#), [\[EA.138.60\]](#), [\[EA.138.80\]](#), [\[EA.138.100\]](#).

Investigation of Commonwealth offences

Investigation of Commonwealth offences are governed by the law in Pt IC of the *Crimes Act 1914* (Cth).

See further at [\[Q.5000\]](#).

Confessions and admissions to persons not in authority

Confessions and admissions to persons not in authority are admissible, unless they are excluded as hearsay¹³ or excluded pursuant to discretion in [s 137 of the Evidence Act 2008](#), if the probative value of the evidence is outweighed by the danger of unfair prejudice to the defendant.

See further at [\[Q.5020\]](#).

Questioning by non-police investigators

Finally, although this chapter is principally concerned with police questioning, non-police investigators may be regulated by the same principles in certain cases. For example occupational health and safety inspectors are obliged to comply with the requirements for tape-recording when indictable offences are involved. They would also be required to caution a suspect in custody, and accord other rights to suspects pursuant to the *Crimes Act 1958*.¹⁴ The rules as to admissibility of admissions pursuant to the *Evidence Act 2008* also apply.

Where admissions in relation to recent offences were made to a Drug Court case worker, in the course of complying with a drug treatment order, the admissions were properly excluded as unfair pursuant to the *Evidence Act 2008*, s 90.¹⁵

See further at [Q.5040].

Footnotes

- 1 *Slattery v Pooley* (1840) 6 M & W 664; 151 ER 579 at 669 (M & W); at 581 (ER); see *Ross v The King* (1922) 30 CLR 246 at 254–255; *Sinclair v The King* (1946) 73 CLR 316 at 339; *Burns v The Queen* (1975) 132 CLR 258; 49 ALJR 248; 6 ALR 95 at 98 (ALR). *Burns v The Queen* (1975) 132 CLR 258; 49 ALJR 248; 6 ALR 95 at 262 (CLR); at 98 (ALR), per Barwick CJ, Gibbs and Mason JJ. See also *R v Swaffield* (1998) 192 CLR 159; 72 ALJR 339; 96 A Crim R 96; 151 ALR 98 at [34], per Brennan J: “There is a public interest in ensuring that the police do not adopt tactics that are designed simply to avoid the limitations on their inquisitorial functions that the courts regard as appropriate in a free society.”
- 2 *Evidence Act 2008*, s 89(1), (2).
- 3 *Evidence Act 2008*, s 89(3), (4).
- 4 See *Crimes Act 1958*, s 464; *Evidence Act 2008*, ss 81–90, 138, 139.
- 5 *Crimes Act 1958*, s 464H.
- 6 *Bunning v Cross* (1978) 141 CLR 54; 52 ALJR 561; 19 ALR 641.
- 7 *Evidence Act 2008*, s 86.
- 8 *Evidence Act 2008*, s 139(3).
- 9 *Crimes Act 1958*, s 464A(3); and see *Vyater v The Queen* (2020) 282 A Crim R 65; [2020] VSCA 32 at [20]–[26].
- 10 See *Victoria Police Manual – Procedures and Guidelines*.
- 11 *Evidence Act 2008*, s 138.
- 12 *Evidence Act 2008*, s 90.
- 13 *Evidence Act 2008*, ss 81, 82.

14 *Crimes Act 1958*, s 464C.

15 *Director of Public Prosecutions (Vic) v Myles* [2021] VSCA 324 at [33]–[37].

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